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## On the Opposing Philosophies of Achieving Morally Sufficient Justice: Assessing the Legal

### Outcomes of the Flint Water Crisis



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## INTRODUCTION

African American Flint natives Mr. and Mrs. Gilleylen could not wait to raise their one-year-old child and soon welcome the gentle kicks in Ashaley Hart-Gilleylen's tummy to the city of Flint, Michigan.<sup>1</sup> In October of 2015, Mrs. Gilleylen was expecting her newborn – but, in the city of Flint, her expectations were apparently *too much*: life for the Gilleylens would take an irreversible dystopian twist. Mrs. Gilleylen would tragically lose her baby due to a miscarriage and her one-year-old would begin “throwing violent temper tantrums,” which were later regarded as “signs of lead poisoning.”<sup>1</sup> Tragically, the Gilleylens would literally lose one child and figuratively lose the other. The culprit? The vicious, lead and bacteria-infested water of the Flint River that resulted from the negligence of public officials in the Flint Water Crisis (FWC).

The FWC was a public health crisis that began in 2014, when the government of Flint, Michigan – a predominantly Black city – decided to switch Flint's water provider from the Detroit Water and Sewerage Department (DWSD) to the Karegnondi Water Authority (KWA) to save “\$200 million” dollars “over 25 years.”<sup>2</sup> In doing so, however, Flint's public officials realized that the KWA was not operational yet and in light of their discontinued relationship with the DWSD, resorted to supplying water from the Flint River instead of the original source Lake Huron. Despite the Flint River's historical use as a “dumping ground for decades,” Flint Mayor Dayne Walling endorsed the water as “safe” and “eminently drinkable.”<sup>3</sup> Notwithstanding such assurances, the skeptical residents accused public officials of mendacity<sup>4</sup>; Flint residents began to

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<sup>1</sup> Shantal Riley, *The children of Flint, ten years later*, (Apr. 25, 2024), <https://harvardpublichealth.org/environmental-health/the-children-of-the-flint-michigan-water-crisis-ten-years-later/>.

<sup>2</sup> Merrit Kennedy, *Lead-Laced Water In Flint: A Step-By-Step Look At The Makings Of A Crisis*, (Apr. 20, 2016), <https://www.npr.org/sections/thetwo-way/2016/04/20/465545378/lead-laced-water-in-flint-a-step-by-step-look-at-the-makings-of-a-crisis>.

<sup>3</sup> Benjamin J. Pauli, *Flint fights back: environmental justice and democracy in the Flint water crisis* § 1-28 (2019)

<sup>4</sup> Ken Haddad, *Ex-Michigan Gov. Rick Snyder accused of covering up, lying about Flint water crisis in explosive report*, (Apr. 17, 2020), <https://www.clickondetroit.com/news/2020/04/17/ex-michigan-gov-rick-snyder-accused-of-covering-up-lying-about-flint-water-crisis/>.

notice “yellow to orange to red”<sup>5</sup> colors in their water and scientific studies revealed that the river was home to “E. coli and total coliform bacteria.”<sup>6</sup> Despite residents’ consistent efforts to highlight such signs of contamination, public officials dissolutely remained indifferent until after 18 months, when they finally decided to revert to supplying water from Lake Huron.<sup>7</sup> Nonetheless, within 18 months, families had already succumbed to elevated blood lead levels, diseases, and in the case of Mrs. Gilleylen’s one-year-old, starkly abnormal behaviors. As a result, the FWC became the “third-largest outbreak of Legionnaires’ disease” in U.S. history.<sup>8</sup> Additionally, one in four children screened following the crisis exhibited elevated blood levels that were “far above average nationally”<sup>9</sup> and rates of depression and anxiety among children surpassed the national average.<sup>10</sup>

In light of the irreversible damage<sup>11</sup> inflicted upon Flint residents, Flint Mayor Dayne Walling declared a state of emergency, the government proposed a \$626 million dollar settlement, public officials filed criminal lawsuits, and state-appointed emergency managers (EMs) attempted to address Flint’s public health crisis, to name a few.<sup>12</sup> Even so, these decisions discredited and excluded the voices of Flint residents. In my interview with Mayor Dayne

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<sup>5</sup> Katie Reilly, *See What Flint’s Poisoned Water Looks Like*, *TIME* (Jan. 21, 2016), <https://time.com/4189116/flint-michigan-water-study-photo/>.

<sup>6</sup> Kennedy, *supra* note 2.

<sup>7</sup> Melissa Denchak, *Flint Water Crisis: Everything You Need to Know*, (Nov. 8, 2018), <https://www.nrdc.org/stories/flint-water-crisis-everything-you-need-know>.

<sup>8</sup> *Ibid.*

<sup>9</sup> Cornell Chronicle, *Water crisis increased Flint children’s lead exposure*, (Jan. 25, 2022), <https://news.cornell.edu/stories/2022/01/water-crisis-increased-flint-childrens-lead-exposure>.

<sup>10</sup> Riley, *supra* note 1.

<sup>11</sup> Perri Zeitz Ruckart et al., *The Flint Water Crisis: A Coordinated Public Health Emergency Response and Recovery Initiative*, NIH (2019).

<sup>12</sup> Kennedy, *supra* note 2.

Walling, he emphasized the crisis's lack of democracy as a "tremendous weakness," for people have the "right to be able to self govern."<sup>13</sup>

Existing literature on the FWC has acknowledged the dichotomy between Flint's government and residents in response to the legal outcomes.<sup>14</sup> However, there are two pressing gaps in literature that must be addressed for racial justice to be achieved in Flint. First, scholars have overlooked the lack of cooperation between the government and residents as rooted in their underlying philosophies of what constitutes morally sufficient legal outcomes. The two most applicable philosophies are utilitarian corrective justice,<sup>15</sup> which seeks any medium to rectify injustice, and distributive racial justice,<sup>16</sup> which emphasizes a *just* process to achieve a *just* outcome, as they primarily differ in the medium by which justice is obtained. Second, public officials and researchers have overlooked the idea of uniting opposing philosophies to achieve a degree of democratic consensus and ultimately reach a resolution that enables racial justice.

In order for racial justice to be morally achieved in the case of the FWC, Flint's government must understand how its utilitarian corrective justice philosophy differs from the distributive racial justice philosophy of the residents when it comes to interpreting the moral sufficiency of the crisis's legal outcomes. In doing so, a common democratic ground that incorporates these opposing philosophical frameworks must be identified and implemented to support the long-term interests of Flint's government and its residents.

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<sup>13</sup> Walling, D. Personal interview. 30 Nov. 2024.

<sup>14</sup> Office of Governor Rick Snyder State of Michigan, Flint Water Advisory Task Force Final Report § (1d ed. 2016)

<sup>15</sup> Ernest J. Weinrib, *Corrective Justice in a Nutshell* § (2002)

<sup>16</sup> DC Matthew, *Rawls and Racial Justice* § (2017)

Before we assess how the opposing moral philosophies disagreed with each other on the moral sufficiency of outcomes in the FWC, I will first establish a foundation of the FWC as a case of systemic and environmental racism. Next, I will define what constitutes a utilitarian corrective justice philosophy and a distributive racial justice philosophy. After defining these philosophies, I will delineate how they, in good faith, disagree with each other in interpreting three significant legal outcomes: the \$626 million settlement, the prosecution of criminals, and the appointment of emergency managers (EMs).<sup>17</sup> Finally, I will propose the solution of uniting these opposing philosophies to achieve racial justice, address anticipated opposing views, and emphasize the urgency of racial justice.

## **THE FWC | A CASE OF SYSTEMIC AND ENVIRONMENTAL RACISM**

Existing literature has revealed that the FWC was an unjust act of systemic racism, which we will define as “the oppression of a racial group to the advantage of another as perpetuated by inequity within interconnected systems.”<sup>18</sup> Flint is a predominantly Black city home to a “national poverty rate of 41.6%” – a rate strikingly “167% higher than the national average poverty rate”<sup>19</sup> To this end, the FWC has been reported as an act of systemic racism, for the predominantly Black residents were oppressed by the elite and predominantly White Flint government.<sup>20</sup> Additionally, the FWC was a case of “environmental racism,” which is produced by “institutional policies and practices that affect the health outcomes and living conditions of

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<sup>17</sup> Denchak, *supra* note 7.

<sup>18</sup> Merriam-Webster, *Definition of Systemic Racism*  
<https://www.merriam-webster.com/dictionary/systemic%20racism>.

<sup>19</sup> Olugbenga Okunade, *The Flint Water Crisis and the Perpetuation of Environmental Racism in Flint, Michigan (2014–2018)* § (2024)

<sup>20</sup> Report of the Michigan Civil Rights Commission, *The Flint Water Crisis: Systemic Racism Through the Lens of Flint* § (2017)

people and communities differentially owing to their race and color.”<sup>21</sup> The Flint government’s continued decision to supply Flint residents with contaminated water, coupled with the negligence of public officials to disregard the angst of Flint’s residents and activists, establishes the crisis as a case of environmental racism. The establishment of the FWC as a case of systemic and environmental racism will support our understanding of how the utilitarian corrective justice and distributive racial justice philosophies, in good faith, disagree with each other.

### UTILITARIAN CORRECTIVE JUSTICE

Utilitarian philosophy, founded by English philosopher Jeremy Bentham, relies on the notion “that the morally right action is the action that produces the most good,” both in terms of “the good of others” and “one’s own good.” For the FWC, we will interpret “others” as the residents of Flint and “one’s” as the Flint government since the government itself held complete authority in the legal decision-making process and thus had the privilege of instituting any form of action to begin with.<sup>22</sup> A utilitarian corrective justice philosophy places an emphasis on establishing a decision that attempts to “benefit the majority” of constituents insofar that the decision “promotes happiness” and rectifies the injustice in the moment.<sup>23</sup> A fundamental assumption in corrective justice is that “one party” must have “committed” and the other party must have “suffered a transactional injustice,” whereby the only form of justice is the “restoration of national equality with which the parties [entered] the transaction.”<sup>24</sup> In the FWC, the government committed an act of injustice at the expense of the residents. Ultimately, the

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<sup>21</sup> Tanya Golash-Boza, *Race and racism: A critical approach* § (2d ed. 2017)

<sup>22</sup> Stanford Encyclopedia of Philosophy, *The History of Utilitarianism*  
<https://plato.stanford.edu/entries/utilitarianism-history/>.

<sup>23</sup> Oxford Reference, *Utilitarianism*

<https://www.oxfordreference.com/display/10.1093/oi/authority.20110803114953685>

<sup>24</sup> Weinrib, *supra* note 15.

philosophy of utilitarian corrective justice is concerned with employing any medium necessary to rectify injustice to benefit both parties involved as much as possible.

## **DISTRIBUTIVE RACIAL JUSTICE**

On the other hand, the philosophy of distributive racial justice is rooted in Rawls's theory of justice, which has proven to hold significant relevance in the domain of racial justice, enabling scholars such as DC Matthew, an adjunct professor at the Department of Philosophy at York University, to interpret distributive justice through a racial lens. "Distributive racial justice" is emphasized as a form of justice where "preventive" and "reformative" measures are implemented to "prevent the introduction or continuation of injustice." Furthermore, distributive racial justice is presented as an ideal form of justice since it uses a "forward-looking" approach to ensure that an act of injustice does not occur again.<sup>25</sup> At the core of distributive racial justice lies the ideology of sufficientarianism, which emphasizes the need for each individual to have *enough*.<sup>26</sup> The definition of *enough* in the FWC pertains to the access to clean water, a pivotal natural resource. Per Resolution 64/292, the United Nations General Assembly has "acknowledged that clean drinking water and sanitation are essential to the realization of all human rights."<sup>27</sup> Moreover, distributive racial justice "foundationally assumes strict compliance – that everyone complies with the principles of justice – in the favorable conditions that make constitutional democracy possible."<sup>28</sup> To this end, a key discrepancy between the opposing philosophies is that distributive racial justice emphasizes a democratically just process to achieve a morally just outcome.

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<sup>25</sup> Matthew, *supra* note 16.

<sup>26</sup> Routledge Encyclopedia of Philosophy, *Sufficientarianism*  
<https://www.rep.routledge.com/articles/thematic/sufficientarianism/v-1>.

<sup>27</sup> United Nations General Assembly, *Resolution Adopted by the General Assembly* § (2010)

<sup>28</sup> Matthew, *supra* note 16.

## OPPOSING PHILOSOPHIES IN ACTION | ASSESSING LEGAL OUTCOMES

Recall that while utilitarian corrective justice is concerned with rectifying the injustice through any means necessary, distributive racial justice is concerned with achieving a “just outcome” through a “just process.”<sup>29</sup> For the FWC specifically, a just process will be assessed on the presence of democratic justice, which, as outlined by Kendall Thomas, a Nash Professor of Law and the co-founder and director of the Center for the Study of Law and Culture at Columbia Law School, entails the following three criteria: 1) “vulnerable racial publics” are equally considered for self-governance, 2) the voices of the constituents are fairly represented in the legal-decision making process, and 3) “enclaves of resistance” are welcomed to enable productive discourse. Chiefly, the medium by which justice is obtained will be a key distinction in analyzing why the government’s philosophy of utilitarian corrective justice firmly conflicts with the residents’ philosophy of distributive racial justice.<sup>30</sup>

In assessing how the two philosophies, in good faith, disagree about the moral sufficiency of the legal outcomes that followed the FWC, I will focus on three critical legal outcomes: the \$626 million dollar settlement Michigan and Flint’s residents, the prosecution of criminals that were not indicted in the FWC investigation, and the government’s decision to appoint emergency managers (EM).<sup>31</sup>

### A \$626 MILLION DOLLAR MONETARY SETTLEMENT

In establishing the \$626 million dollar settlement that sought to compensate for the residents’ damaged health, District Judge Judith E. Levy had declared the monetary settlement as

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<sup>29</sup> J. Pauli, B. Personal Interview. 27 Nov. 2024

<sup>30</sup> Kendall Thomas, *Racial Justice: Moral or Political CLS* § (2002).

<sup>31</sup> Kennedy, *supra* note 2.



“fair, reasonable, and adequate,”<sup>32</sup> whereas Flint residents had ardently disagreed, declaring that the settlement wasn’t morally sufficient.<sup>33</sup> When we consider the government’s philosophy of utilitarian corrective justice, the monetary settlement, enabled – at least in the government’s good faith – the Flint government to rectify the injustice while benefiting “the majority.” Specifically, the settlement revealed that the state must pay \$600 million (later revised to \$626 million) “for the benefit of those individuals, property owners, and businesses who claimed they were injured by the water.” More subtly revealed, the settlement also declared that the settlement would be “allocated” only once the “attorneys’ fees and expenses,” as well as “settlement administration expenses,” were decided “by the court.”<sup>34</sup> In short, the government sincerely sought to correct the injustice of the crisis by instituting a monetary settlement that attempted to benefit as many parties involved as possible, which they declared as morally sufficient through the utilitarian corrective justice framework.

On the other hand, the Flint residents unwaveringly disagreed with the moral sufficiency of the monetary settlement for two primary reasons: 1) they felt that no amount of money could repay the irreparable harm inflicted upon the health of young Flint residents and 2) the Flint residents themselves were not involved in the legal decision-making process and had no say on the allocation of money in the settlement.<sup>35</sup> The opposition depicted by Flint’s residents is indicative of the distributive racial justice philosophy, for the Flint residents did not believe that

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<sup>32</sup> In re Flint Water Cases, 583 F.Supp.3d 911, 945 (E.D. Mich. 2022)

<sup>33</sup> Jena Brooker, *Flint water crisis victims reach \$626 million settlement*, *Grist* (Nov. 11, 2021), <https://grist.org/accountability/flint-water-crisis-victims-reach-626-million-settlement/>.

<sup>34</sup> State of Michigan, *Terms of Settlement of Flint Water Cases Against the State of Michigan* (2021), [https://www.michigan.gov/-/media/Project/Websites/AG/environment/PFAS/Terms\\_of\\_Settlement.pdf?rev=beaa420793964f8e9044e2eeae173722](https://www.michigan.gov/-/media/Project/Websites/AG/environment/PFAS/Terms_of_Settlement.pdf?rev=beaa420793964f8e9044e2eeae173722) [<https://perma.cc/VF5B-JLRT>].

<sup>35</sup> Nancy Kaffer, *Flint water crisis still hurts 10 years later*, *USA Today* (2024)

the settlement funds were sufficient in addressing their need for clean water. More importantly, however, the Flint residents expressed hostility toward the unjust process employed by the government to achieve *justice*. The process of arriving at the settlement clearly was not democratically just as it excluded and discredited the voices of Flint residents. The allocation of “one-third” of the settlement to attorney’s fee only intensified the residents’ pre-existing concerns about the insufficiency of money in compensating for permanent health damage.<sup>36</sup> Nonetheless, hungry for immediate financial relief and fearful of losing in court, the Flint residents naively accepted the settlement.

### **CONVICTED CRIMINALS ESCAPING THE PUBLIC SPOTLIGHT**

In an effort to correct the racial injustice that followed the crisis, Michigan’s Attorney Generals Bill Schuette (2011-2019) and Dana Nessel (January 2019 – Present) filed criminal prosecutions against criminals in the FWC, yet several criminals were dismissed from their trials, sparking criticism from Flint residents as to whether justice was truly being attained. In the perspective of utilitarian corrective justice, the attorney generals sought to prosecute and hold the criminals accountable to compensate for the injustice following the crisis and benefit society by preventing possibilities for future injustices. Nonetheless, the efforts of the attorney generals were to no avail. Despite investing “eight years” and “\$60 million dollars...on the criminal probes and defending the state in a class-action civil suit, neither former Attorney General Bill Schuette” nor “Nessel...[forced] top state officials to stand trial for the Flint disaster.”<sup>37</sup>

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<sup>36</sup> Beth LeBlanc, *3 Flint residents challenge \$202 million attorney fee plan*, (Mar. 30, 2021), <https://www.detroitnews.com/story/news/local/michigan/2021/03/30/3-flint-residents-challenge-202-million-attorney-fee-plan/7060629002/>.

<sup>37</sup> Mike Wilkinson, *Flint Water Cases Doomed by Missteps from Dana Nessel’s Office, experts say*, (Nov. 26, 2024), <https://www.bridgemi.com/michigan-environment-watch/flint-water-cases-doomed-missteps-dana-nessels-office-experts-say> [https://perma.cc/VUA5-SFLJ].

Fundamentally, the failure of such criminal prosecutions can be attributed to the use of a “one-person grand jury,” which per the United States Department of Justice, wasn’t able to “issue an indictment” since “twelve jurors [must] concur.”<sup>38</sup> Furthermore, Nessel’s decision to throw out “initial criminal charges brought under” Schuette’s term, restart “the investigation” and gather “evidence without adequate measures” only delayed the process to justice.<sup>39</sup> At this point, justice could no longer be resorted despite the seemingly good faith of the attorney generals, for the statute of limitations prevented any further charges.

In the view of Flint residents’ distributive racial justice philosophy, an unjust process was used to achieve an unjust outcome. First and foremost, the Flint residents had no say as to which public officials should be convicted. More importantly, however, Nessel’s decision to throw out any previous evidence and convictions proposed by Attorney General Schuette only delayed the criminal conviction process and increased levels of distrust among Flint residents.<sup>40</sup> Furthermore, in an attempt to convict the key political figures involved in the crisis, the Flint government did not address how the crisis was driven by the root cause of systemic racism nor make any successful efforts to prevent the crisis from occurring again (albeit the intention of ousting criminals from the government was to prevent another act of injustice). When we consider the ideology of sufficientarianism, Flint residents continued to struggle in accessing clean, safe water. The government’s negligence of the public health of Flint only exacerbated the crisis’s outcomes, for the continued inaction in providing Flint with clean water has affected an “estimated 9000 children of Flint who” have “experienced elevated blood lead levels – leading to

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<sup>38</sup> Office of the United States Attorneys U.S. Department of Justice, *Steps in the Federal Criminal Process: Charging*, <https://www.justice.gov/usao/justice-101/charging> [https://perma.cc/X4HA-9JUQ ].

<sup>39</sup> Wilkinson, *supra* note 37.

<sup>40</sup> Victoria Morckel & Kathryn Terzano, *Legacy city residents’ lack of trust in their governments: An examination of Flint, Michigan residents’ trust at the height of the water crisis* § (2018)

learning and behavioral problems.”<sup>41</sup> More horrifically, scientific tests have revealed that the “water in Flint had more than 100 times the legal level of lead.” The Flint government’s attempts to convict the criminals involved in the crisis stands as a decision driven by good faith. Nonetheless, the mere failure of such convictions, coupled with the government’s lack of accountability in providing clean, sustainable drinking water simply reinforces the crisis as a case of environmental racism where no legal action was fulfilled to sufficiently meet the needs of the victims and prevent the crisis from occurring again.

### **APPOINTING EMs | PLACING GOVERNMENTAL ACCOUNTABILITY UNDER THE VEIL**

Although Flint’s government decided to continue appointing EMs to aid in the recovery of the FWC’s aftermath and thus benefit Flint as a whole, the residents of Flint strongly opposed such a decision, for EMs were unelected and were simply perceived as political insulators for governmental accountability. During and before the FWC, EMs assumed “both the executive and legislative functions of city government,”<sup>42</sup> and held the responsibility of supporting the state of Michigan in making financial decisions. Under the passing of Emergency Manager Law PA 4 by Governor Snyder, however, “local democratic rule” had become “displaced” and EMs were granted “an extraordinary set of powers” to “enact unilateral change, with the primary objective of balancing local municipal budgets.”<sup>43</sup> Although PA 4 was repealed through the “referendum process,” the legislature had implemented a revised version of PA 436 (a revised version of PA 4)

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<sup>41</sup> Dionna Brown, *Ten Years Later, Flint Still Doesn't Have Clean Water*, *Human Rights Watch* (May 20, 2024), <https://www.hrw.org/news/2024/05/20/ten-years-later-flint-still-doesnt-have-clean-water> [https://perma.cc/AQ38-99KP].

<sup>42</sup> Benjamin J. Pauli, *Flint fights back: environmental justice and democracy in the Flint water crisis* § 70-100 (2019)

<sup>43</sup> *Ibid.*

that made it “impossible to repeal by popular referendum.”<sup>44</sup> Through a utilitarian corrective justice framework, the government employed EMs to assist the state of Michigan in making financially wise decisions. During the crisis, the EMs had made “organizational adjustments” such as renegotiating government salaries and closing selected agencies; the decision to appoint EMs during the crisis was reported to be “successful” as it effectively halted Flint’s “financial emergency.”<sup>45</sup> The choice to prioritize cost-cutting goals over the public health of Flint residents enabled the EMs to *morally* benefit the city’s financial situation. When Flint residents complained about signs of contamination in the water and urged public officials to revert back to DWSD, Flint emergency manager Gerald Ambrose followed his responsibility as an EM and “rejected the call because of the costs.”<sup>46</sup>

In contrast, in the eyes of Flint residents, appointing EMs was a highly unethical and immoral act on the part of the government. Scholars have revealed how the appointment of EMs was indicative of the “devaluation of Black people by the American government.”<sup>47</sup> Whereas there were “White cities” facing the “same issue of financial incapacitation” as Flint, these cities were not appointed EMs.<sup>48</sup> Moreover, the appointment of EMs was not a democratic process; the state had appointed EMs and the Flint Residents had “no say over the decisions of the state-appointed emergency manager.”<sup>49</sup> The appointment of EMs did not address the root cause of systemic racism in the FWC and implied that White elites in Flint’s government were more effective at governing the city than the residents themselves, eliminating any room for

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<sup>44</sup> Peter J. Hammer, *The Flint Water Crisis, KWA and Strategic-Structural Racism* § (2016)

<sup>45</sup> Julius A. Nukpezah, *The Financial and Public Health Emergencies in Flint, Michigan: Crisis Management and the American Federalism*, RHCPP (2017).

<sup>46</sup> Hammer, *supra* note 44.

<sup>47</sup> Okunade, *supra* note 19.

<sup>48</sup> *Ibid.*

<sup>49</sup> Riley, S. Personal interview. 3 Dec. 2024.

self-determination. Ultimately, the lack of a democratic relationship between Flint's residents and EMs set the stage for an unjust process that did not sufficiently address the residents' need to clean water.

## **UNITING PHILOSOPHIES TO ACHIEVE RACIAL JUSTICE: PROPOSED SOLUTION**

In order for racial justice to be truly achieved, a common ground that encompasses the ideologies of corrective utilitarian justice and distributive racial justice must be implemented. As a result, the process by which justice is achieved must be morally just; that is, a democratic structure between the perpetrator and victim(s) of injustice must be inherently established for the solution to be just. The solution of combining corrective utilitarian justice and distributive racial justice holds its efficacy in the historical example of the Warren County PCB Landfill Protests.

The Warren County's PCB Landfill Protests (1978-1982) originated when "a small, predominately African American community was designated to host a hazardous waste landfill," which similar to the FWC, was also an act of environmental and systemic racism.<sup>50</sup> In 1978, Former Governor James B. Hunt decided to build a toxic landfill in the rural community of Afton (Warren County) in North Carolina "to store 60,000 tons of soil laced with cancer-causing polychlorinated biphenyls (PCBs)."<sup>51</sup> Although protests within the African American community attempted to prevent the creation of a toxic landfill, the state of North Carolina still persisted; "more than 7,000 truckloads of contaminated soil" were dumped into a community where the

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<sup>50</sup> U.S. Department of Energy, *Environmental Justice History*, <https://www.energy.gov/lm/environmental-justice-history#:~:text=The%20initial%20environmental%20justice%20s park,of%20toxic%20waste%20along%20roadways> [https://perma.cc/68PA-86JE].

<sup>51</sup> UNC University Libraries, *We Birthed the Movement: The Warren County PCB Landfill Protests, 1978-1982*, <https://library.unc.edu/exhibition/we-birthed-the-movement-the-warren-county-pcb-landfill-protests-1978-1982/> [https://perma.cc/ZWD9-J5HK].

population was “60% Black.”<sup>52</sup> Nonetheless, in light of such injustice, the outcomes of the protests illuminate the practicality of combining both of the discussed philosophical frameworks to achieve racial justice.

Racial justice for Warren County was morally achieved when utilitarian corrective justice and distributive racial justice were fruitfully combined. First, the Warren County residents had ardently protested the decision to build a landfill, which contributed to the growing recognition of the environmental injustice that the community was facing. The Warren County residents’ democratic freedom to voice their opinions about Governor Hunt’s decision, coupled with the just process of righteously protesting against the government through “enclaves of resistance,” illustrate the core tenets of distributive racial justice and its reliance on a democracy.<sup>53</sup> Furthermore, because the residents were not protected by any form of environmental protection, the need to ensure that each resident is endowed to sufficient environmental justice that protects their wellbeing was necessary. The First National People of Color Environmental Leadership Summit (1991) addressed this need by establishing “the Principles of Environmental Justice,” which sought to ensure “economic alternatives” that “would contribute to the development of environmentally safe livelihoods.”<sup>54</sup> The establishment of such principles not only sufficiently addressed the democratically expressed needs of Warren County residents, but also provided hope that such a case of environmental injustice would not occur again. To this end, the Principles of Environmental Justice simultaneously served as a form of utilitarian corrective justice and distributive racial justice that sought to rectify the lack of sufficient environmental

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<sup>52</sup> *Ibid.*

<sup>53</sup> Thomas, *supra* note 30.

<sup>54</sup> Delegates to the First National People of Color Environmental Leadership, *The Principles of Environmental Justice (EJ)* § (1d ed. 1991)

protections for communities and prevent future cases of environmental injustice.

Correspondingly, the establishment of a “Environmental Equity Working Group” and “Executive Order 12898, Federal Actions to Address Environmental Justice in Minority Populations and Low-Income Populations” signified the necessary duality of legal outcomes to encompass both a utilitarian corrective justice philosophy and distributive racial justice philosophy, for these decisions attempted to assuage the existing injustice and prevent it from occurring again.<sup>55</sup>

By uniting these opposing philosophies, the FWC can achieve a just outcome for both the Flint government and residents. In order to elaborate on a proposed solution for Flint, I will first reiterate a critical gap that uniting these opposing philosophies fulfill: democratic justice. Mayor Dayne Walling, in our conversation, acknowledged the “real deal of trauma” that exists in the Flint community and declared that the fundamental weakness in enabling such trauma was the lack of “checks and balances” and room for “debate and dialogue.”<sup>56</sup> He admitted that a lot of public officials took this “for granted,” which resulted in the government detaching itself from the people being governed.<sup>57</sup> Above all, he summarized that “the Flint water crisis is one example that points to how catastrophic the consequences can be of consolidated political power.”<sup>58</sup> His push for ensuring democratic justice further proves that these two philosophies must be united in order for racial justice to be achieved.

In the case of the FWC, uniting utilitarian corrective justice with distributive racial justice would encompass legal outcomes that ensure that 1) the need to access clean, sustainable water is timely and sufficiently met, 2) measures are taken to effectively prevent acts of racial injustice

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<sup>55</sup> U.S. Department of Energy, *supra* note 50.

<sup>56</sup> Walling, *supra* note 13.

<sup>57</sup> *Ibid.*

<sup>58</sup> *Ibid.*



from occurring again, and 3) a democratic relationship between the Flint residents and the government is consistently maintained to ensure that whenever a legal decision is made, a just process and just outcome can be achieved. By harmonizing these two philosophies, public officials in Flint would have been able to supply clean, sustainable water as they would have held a democratic obligation to acknowledge and listen to Flint residents to fulfill their needs. In the case of the \$626 million dollar settlement, Flint officials would have arrived at a more sufficient and convincing settlement had they engaged in democratic discourse with the residents. The sheer fact that Flint residents are still “waiting to see payments from” the settlement since it is “yet to be disbursed” stands as a callous depiction of the government’s negligence of Flint’s residents.<sup>59</sup> Furthermore, when we consider the prosecution of criminals in the crisis, public officials could have arrived at a more just and successful outcome to the Flint Investigation if they prosecuted criminals after acknowledging the concerns of the residents; for instance, many residents felt insulted as the charges against Governor Rick Snyder were “little more than a slap on the wrist.”<sup>60</sup> Additionally, by democratically involving the residents in the investigation, Nessel’s controversial decision to throw out existing criminal charges could have been prevented. Finally, given that an EM had discredited the voices of Flint residents and denied access to water from the Flint River, it is clear that, if the voices of the residents were truly represented, intervening measures would have prevented the exacerbation of their health. Thus, by uniting these opposing philosophical frameworks, public officials become obligated to employ mediums of democratic justice to achieve just outcomes.

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<sup>59</sup> Riley, *supra* note 49.

<sup>60</sup> Corporate Accountability, *STATEMENT: Public officials indicted for alleged crimes related to the Flint water crisis* (2021), <https://corporateaccountability.org/media/statement-public-officials-indicted-for-alleged-crimes-related-to-the-flint-water-crisis/> [https://perma.cc/368D-2YJ6].

## ADDRESSING OPPOSITION

In response to the decision to combine both philosophical frameworks, critics from the school of philosophy Pragmatism<sup>61</sup> may declare that it would be impractical to unite these philosophical frameworks as doing so implies that the needs of the victims must be sufficiently addressed, when the overall practicality of meeting such needs must be met given resource constraints. Let me emphasize that by combining utilitarian corrective justice with distributive racial justice, I am not declaring that every single goal from both schools of philosophy must be satisfied; after all, the goal is to ensure that a democratic consensus between these philosophical frameworks is achieved, for a consensus is better than the superiority of one philosophy over the other (as was evident in the FWC).

Additionally, opponents to the proposed solution may argue that declaring the necessity for democratic justice is unconstitutional since the US Constitution “does not guarantee a democracy, but guarantees a representative republic.”<sup>62</sup> Although the US is a representative republic, the constitution illuminates the structure of the US government as rooted in democratic principles. The Preamble of the Constitution’s focus on “We the People,”<sup>63</sup> coupled with Article 1 Section 2’s emphasis on how the “people of the several states”<sup>64</sup> choose the members of the House of Representatives signifies the democratic roots of the Constitution. Thus, it is clear that the constitution supports a majority rule structure as opposed to a minority rule. Moreover, the constitution’s living nature does not prohibit democratic governance.

## FUTURE WORK AND CONCLUSION

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<sup>61</sup> Michael Bacon, *Pragmatism an Introduction* § 1-63 (1d ed. 2012)

<sup>62</sup> Pauli, *supra* note 29.

<sup>63</sup> U.S. Const. pmbl.

<sup>64</sup> U.S. Const. art. I, § 2, cl. 1.

The Flint government's utilitarian corrective justice philosophy fundamentally contradicts with the residents' distributive racial justice philosophy as the latter emphasizes the need for a just process in achieving a just outcome, whereas the former doesn't. In order to promote racial justice in the future and prevent future acts of environmental and systemic racism, it's imperative for Flint's government to harmonize the opposing philosophies of utilitarian corrective justice and distributive racial justice. Uniting these philosophies in good faith will enable the city of Flint to identify a common consensus that promotes the voices of the people, sufficiently addresses their needs, and promises an auspicious future where injustice is not present. Mayor Dayne Walling has revealed that the city is working to develop "the first medical psychiatry hospital that will provide 24/7 support."<sup>65</sup> This has not been done yet; we must hold the city accountable and ensure that all needs, be it healthcare or access to clean water, are continuously met.

As British Prime Minister William Gladstone proudly declared – and prominent activists such as Martin Luther King Jr.<sup>66</sup> have emphasized – "Justice delayed, is justice denied."<sup>67</sup> The antidote to the poison of delayed justice is the unity of the mentioned opposing philosophies. Racism has no place in this world. Democracy does. Let's embrace this ideology to live in harmony and promote equality in our world – and to protect families such as the Gilleylens.<sup>68</sup>

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<sup>65</sup> Walling, *supra* note 13.

<sup>66</sup> King, Martin Luther, Jr., *Letter from Birmingham Jail* (2018)

<sup>67</sup> Karen J Greenberg, The Trumpian Consequences of Delaying Justice, *The Nation* (Mar. 6, 2024), <https://www.thenation.com/article/politics/the-trumpian-consequences-of-delaying-justice/> [https://perma.cc/VS74-YPVH].

<sup>68</sup> Riley, *supra* note 1.

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